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| 108 | <b>Mical vs. Prime Healthcare La Palma, LLC</b><br><br><b>2022-01292457</b> | <b>Case Management Conference</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 109 | <b>Jamal vs. DB Glboal, Inc.</b><br><br><b>2024-01396853</b>                | <b>Motion for Approval of Preliminary Class Settlement</b><br><br>Plaintiff Rima Jamal's Motion for Preliminary Approval of Class Action and PAGA Settlement is <b>CONTINUED to September 17, 2026 at 2:00 p.m. in Department CX102</b> in order to give Class Counsel an opportunity to address the issues identified below.<br><br>This is a putative wage-and-hour class action and PAGA matter.<br><br>On 4/30/2024, Plaintiff Rima Jamal, individually and on behalf of all others similarly situated, filed a class action complaint against Defendants DB Glboal [ <i>sic</i> ], Inc. and Right at Home, LLC, alleging various Labor Code wage-and-hour violations and unfair business practices. (ROA #2.)<br><br>On 6/26/2024, Plaintiff filed a form Amendment to the Complaint, correcting the name of the first defendant to DB Global, Inc. (ROA #25.) On 7/2/2024, the Court entered the order approving the amendment. (ROA #26.)<br><br>On 7/9/2024, Defendant DB Global, Inc. dba Right at Home and Defendant Right at Home, LLC answered. (ROA #31, 34.)<br><br>On 5/13/2025, the Court took notice that Plaintiff's PAGA action against the same defendants is a related case: Jamal v. DB Global, Inc., OCSC Case No. 2024-01411993. (ROA #51.) That action was filed on 7/5/2024, alleging a single cause of action for PAGA penalties. (ROA #2 in Case No. 2024-01411993.) On 9/4/2024, Defendant DB Global, Inc. dba Right at Home answered. (ROA #15 in Case No. 2024-01411993.)<br><br>On 1/28/2026, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement in the instant case, and submitted the Settlement Agreement and Stipulation to Resolve Class Action and PAGA Claims ("Settlement Agreement") and Class Notice for the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$300,000. The GSA includes \$30,000 allocated for PAGA penalties. |

The Court has identified several issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted:

1. Counsel has failed to provide the Court with a text-searchable version of the settlement agreement, in compliance with CRC 2.256(b)(3).
2. Counsel has also failed to comply with CRC 3.1113(f) requiring that a memorandum of points and authorities that exceeds 10 pages must include a table of contents and table of authorities.
3. The Settlement Agreement provides that “[p]rior to filing the motion for preliminary approval, the Parties will submit a stipulation to the Court in the Class Action requesting to consolidate the PAGA Action with the Class Action.” (Settlement, ¶ 39.) Plaintiff’s counsel’s declaration also attests that “[a]s part and parcel to the Agreement, the Parties agree to stipulate to the consolidation of the PAGA Action within the Class Action for purposes of settlement approval (hereinafter, the ‘Action’).” (ROA #72, Counsel Decl., ¶ 8.) However, the parties have not yet filed such a stipulation or proposed order, so the actions are only related at this time. Yet the motion seeks approval of settlement of both actions. The parties must take steps to formally consolidate the actions before preliminary approval may be granted on this single motion filed only in this case.
4. The moving papers fail to provide an estimated number of PAGA Aggrieved Employees.
5. The Settlement Agreement provides that unclaimed funds will be remitted to Legal Aid at Work as a cy pres recipient. Defense counsel (along with Defendant DB Global and Plaintiff) have attested that there is no potential conflict of interest as to the proposed cy pres recipient. (ROA #62, ¶¶ 4-6; ROA #66, ¶ 24.) However, Plaintiff’s counsel has provided any such declaration, as required by CCP section 382.4.
6. The moving papers do not explain why Defendant will fund the GSA in two installment payments rather than one lump sum.
7. Class Counsel’s valuation analysis of why the settlement is fair, adequate and reasonable in light of the strengths and weaknesses of the claims is incomplete. Although counsel provided a valuation for each type of claim, counsel’s valuation did not clearly and consistently differentiate between estimated maximum exposure and realistic adjusted value or explain what discounts were taken and why to arrive at realistic adjusted values. Counsel must provide “the actual discount amounts applied to each claim for certification risks and merits risks as well as an analysis of the gross settlement amount as a percentage of . . . the risk-adjusted recovery,” as required by this department’s Guidelines for Approval of Class Action Settlements & PAGA Settlements at ¶ I.A.13.
8. Class Members must have the option of submitting requests for exclusion, objections, and workweek disputes by fax and email in addition to by mail.
9. The additional 15-day deadline for responses to the Class Notice (i.e., opt outs, objections, and workweek disputes) after remailing is too short and should be at least 30 days after remailing.

10. The Settlement Agreement should specify that the Court’s continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).

Class Counsel must also provide the Court with a revised Class Notice with the following revisions:

1. The notice should be revised so as to be consistent with the resolution of the issues identified above, including correcting the caption used on page 1 to reflect consolidation of the two related actions after it occurs.
2. On page 1, the sentence “Please continue reading to learn how this Settlement affects your rights” should be replaced with the following sentences, bolded, and set forth in a new paragraph: “Your legal rights are affected whether you act or not act. Read this Notice carefully. You will be deemed to have carefully read and understood it.”
3. Rather than having Class Members draft their own workweek disputes, the Class Notice should include a form for this purpose, just as it does for opt out requests and objections.
4. Under Option 3 for objections to the settlement, the first sentence reads: “If you are a Class Member who does not opt out of the Class, you may object to the Settlement, personally or through an attorney, by submitting your objection to the Settlement Administrator. . . .” This does not clearly inform the Class Member that they may also object by appearing at the Final Approval hearing either personally or through an attorney.
5. In addition to Class Counsel’s contact information and the Court’s website for accessing case records, the notice should also provide a URL to a website, maintained by the settlement administrator or plaintiff’s counsel, that has links to the notice, settlement agreement, and key case documents.
6. The notice should specify that the judgment, “whether favorable or not,” will be binding all Class Members who do not request exclusion. (CRC, rule 3.766(d)(4).)

Class Counsel must also provide a revised [Proposed] Order Granting Preliminary Approval with the following revisions:

1. The proposed order should be revised to incorporate the relevant revisions identified above, including a revised caption following consolidation as well as revised attachments.
2. Counsel should not leave blank but should instead propose a realistic Final Approval hearing date, taking into account the deadlines associated with mailing and remailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys’ fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff’s declaration to support the enhancement request). The Court usually sets these hearings at least 4 months after preliminary approval. All supporting

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|            |                                                                  | <p>papers must also be filed at least sixteen (16) court days before the Final Approval hearing date.</p> <p>3. The proposed order should specify the Court’s continuing jurisdiction pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).</p> <p>The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements &amp; PAGA Settlements” posted on the Court’s website for Department CX102, available at <a href="https://voypubapps.occourts.org/complex-civil-calendar">https://voypubapps.occourts.org/complex-civil-calendar</a>.</p> <p>Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance.</p> <p>Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.</p> |
| <b>110</b> | <b>Jamal vs. DB Gboal, Inc.</b><br><br><b>2024-01411993</b>      | <b>Status Conference</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>111</b> | <b>Logue vs. JHA Remediation LLC</b><br><br><b>2024-01401183</b> | <p><b>1. Motion for Approval of PAGA Settlement</b><br/> <b>2. Status Conference</b><br/> <b>3. Order to Show Cause re: Monetary Sanctions for Plaintiff's FTA</b></p> <p><b>OSC:</b></p> <p>The Court finds that Plaintiff’s counsel has provided substantial justification for failure to appear at the 3/26/2026 case management conference. (See ROA #145.) Therefore, the Court <b>VACATES</b> the OSC re: Monetary Sanctions for Plaintiff’s Failure to Appear.</p> <p><b>APPROVAL MOTION:</b></p> <p>Plaintiff Corey Logue and Defendants’ JHA Remediation, LLC and JHA Environmental, Inc.’s joint Motion for Approval of PAGA Settlement is</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |